ATTACHMENT 2

PROCEDURAL SAFEGUARDS NOTICE – EXPULSION

Informal Hearing

The following due process requirements will be observed at the informal hearing:

1. You may attend the informal hearing with your child.

2. You or your child will be given the right to cross examine any witnesses presented by the principal.

3. You or your child will be extended the right to speak and produce witnesses.

4. As this is an informal hearing, tape recording of the meeting is not permitted.

5. No retained attorneys will be permitted to participate in the hearing.

Formal Expulsion Hearing

The following due process requirements apply to the formal expulsion hearing:

1. The hearing shall be held in private unless you request a public hearing.

2. A stenographic record will be made of the hearing. You may request a copy of the transcript at his or your expense.

3. Your child/children have a right to be represented by counsel.

4. You will have the right to cross-examine any witness presented by the Administration.

5. Your child/children have the right to testify and present witnesses on their own behalf.

6. You have a right to review any written statements made by the above witnesses.

Where the student disagrees with the results of the hearing, recourse is available in the appropriate court of the Commonwealth. If it is alleged that a constitutional issue is involved, the student may file a claim for relief in the appropriate federal district court.

Students who are less than 17 years of age are still subject to the compulsory school attendance law even though expelled, and they must be provided an education by the student's district of residence. The initial responsibility for providing the required education rests with the student's parents or guardian, through placement in another school, through tutorial or correspondence study, or through another educational program approved by the district superintendent. If the parents or guardians are unable to provide for the required education, they must, within thirty (30) days, submit to the school district written evidence so stating. The District then has the responsibility to make some provision for the student's education. If the approved educational program is not complied with, the school district may take action in accordance with Chapter 63 of the Juvenile Act (42 Pa.C.S. 6301-6308), to ensure that the child will receive a proper education.